

BREYER, J., concurring in judgment

state sovereign immunity either way, we need not resolve this open question today. I would, however, be willing to consider the matter in an appropriate case.

For these reasons, I join all of the Court’s opinion except for the final paragraph in Part II–A and the final paragraph in Part II–B.

JUSTICE BREYER, with whom JUSTICE GINSBURG joins, concurring in the judgment.

The Constitution gives Congress certain enumerated powers. One of them is set forth in the Intellectual Property Clause: Congress may “promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.” Art. I, §8, cl. 8. “And the monopoly rights so given,” the Court acknowledges, operate against “States no less than private parties.” *Ante*, at 256. States, in other words, have “a specific duty” not to infringe that “is assigned by law” and upon which “individual rights depend.” *Marbury v. Madison*, 1 Cranch 137, 166 (1803). One might therefore expect that someone injured by a State’s violation of that duty could “resort to the laws of his country for a remedy,” *ibid.*, especially where, as here, Congress has sought to provide one. Or more concretely, one might think that Walt Disney Pictures could sue a State (or anyone else) for hosting an unlicensed screening of the studio’s 2003 blockbuster film, *Pirates of the Caribbean* (or any one of its many sequels).

Yet the Court holds otherwise. In its view, Congress’ power under the Intellectual Property Clause cannot support a federal law providing that, when proven to have pirated intellectual property, States must pay for what they plundered. *Ante*, at 256–260. To subject nonconsenting States to private suits for copyright or patent infringement, says the Court, Congress must endeavor to pass a more “tailored statute” than the one before us, relying not on the Intellec-

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tual Property Clause, but on §5 of the Fourteenth Amendment. *Ante*, at 266. Whether a future legislative effort along those lines will pass constitutional muster is anyone's guess. But faced with the risk of unfairness to authors and inventors alike, perhaps Congress will venture into this great constitutional unknown.

That our sovereign-immunity precedents can be said to call for so uncertain a voyage suggests that something is amiss. Indeed, we went astray in *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44 (1996), as I have consistently maintained. See *College Savings Bank v. Florida Prepaid Postsecondary Ed. Expense Bd.*, 527 U.S. 666, 699–701 (1999) (dissenting opinion); *Federal Maritime Comm'n v. South Carolina Ports Authority*, 535 U.S. 743, 787–788 (2002) (same). We erred again in *Florida Prepaid Postsecondary Ed. Expense Bd. v. College Savings Bank*, 527 U.S. 627 (1999), by holding that Congress exceeded its §5 powers when it passed a patent counterpart to the copyright statute at issue here. See *id.*, at 652–664 (Stevens, J., dissenting). But recognizing that my longstanding view has not carried the day, and that the Court's decision in *Florida Prepaid* controls this case, I concur in the judgment. See *ante*, 259–260, 265–266; *Kimble v. Marvel Entertainment, LLC*, 576 U.S. 446, 455–456 (2015); *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U.S. 230, 261 (2019) (BREYER, J., dissenting).

Syllabus

KAHLER *v.* KANSAS

CERTIORARI TO THE SUPREME COURT OF KANSAS

No. 18–6135. Argued October 7, 2019—Decided March 23, 2020

In *Clark v. Arizona*, 548 U. S. 735, this Court catalogued the diverse strains of the insanity defense that States have adopted to absolve mentally ill defendants of criminal culpability. Two—the cognitive- and moral-incapacity tests—appear as alternative pathways to acquittal in the landmark English ruling *M’Naghten’s Case*, 10 Cl. & Fin. 200, 8 Eng. Rep. 718. The moral-incapacity test asks whether a defendant’s illness left him unable to distinguish right from wrong with respect to his criminal conduct. Respondent Kansas has adopted the cognitive-incapacity test, which examines whether a defendant was able to understand what he was doing when he committed a crime. Specifically, under Kansas law a defendant may raise mental illness to show that he “lacked the culpable mental state required as an element of the offense charged,” Kan. Stat. Ann. §21–5209. Kansas does not recognize any additional way that mental illness can produce an acquittal, although a defendant may use evidence of mental illness to argue for a lessened punishment at sentencing. See §§21–6815(c)(1)(C), 21–6625(a). In particular, Kansas does not recognize a moral-incapacity defense.

Kansas charged petitioner James Kahler with capital murder after he shot and killed four family members. Prior to trial, he argued that Kansas’s insanity defense violates due process because it permits the State to convict a defendant whose mental illness prevented him from distinguishing right from wrong. The court disagreed and the jury returned a conviction. During the penalty phase, Kahler was free to raise any argument he wished that mental illness should mitigate his sentence, but the jury still imposed the death penalty. The Kansas Supreme Court rejected Kahler’s due process argument on appeal.

Held: Due process does not require Kansas to adopt an insanity test that turns on a defendant’s ability to recognize that his crime was morally wrong. Pp. 279–297.

(a) A state rule about criminal liability violates due process only if it “offends some principle of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.” *Leland v. Oregon*, 343 U. S. 790, 798 (internal quotation marks omitted). History is the primary guide for this analysis. The due process standard sets a high bar, and a rule of criminal responsibility is unlikely to be sufficiently entrenched to bind all States to a single approach. As the Court explained in *Powell v. Texas*, 392 U. S. 514, the scope of criminal responsi-

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bility is animated by complex and ever-changing ideas that are best left to the States to evaluate and reevaluate over time. This principle applies with particular force in the context of the insanity defense, which also involves evolving understandings of mental illness. This Court has thus twice declined to constitutionalize a particular version of the insanity defense, see *Leland*, 343 U.S. 790; *Clark*, 548 U.S. 735, holding instead that a State’s “insanity rule[] is substantially open to state choice,” *id.*, at 752. Pp. 279–282.

(b) Against this backdrop, Kahler argues that Kansas has abolished the insanity defense—and, in particular, that it has impermissibly jettisoned the moral-incapacity approach. As a starting point, Kahler is correct that for hundreds of years jurists and judges have recognized that insanity can relieve criminal responsibility. But Kansas recognizes the same: Under Kansas law, mental illness is a defense to culpability if it prevented a defendant from forming the requisite criminal intent; a defendant is permitted to offer whatever evidence of mental health he deems relevant at sentencing; and a judge has discretion to replace a defendant’s prison term with commitment to a mental health facility.

So Kahler can prevail only by showing that due process requires States to adopt a specific test of insanity—namely, the moral-incapacity test. He cannot do so. Taken as a whole, the early common-law cases and commentaries reveal no settled consensus favoring Kahler’s preferred right-from-wrong rule. Even after *M’Naghten* gained popularity in the 19th century, States continued to experiment with new approaches. *Clark* therefore declared: “History shows no deference to *M’Naghten* that could elevate its formula to the level of fundamental principle.” 548 U.S., at 749–752. The tapestry of approaches States have adopted shows that no single version of the insanity defense has become so ingrained in American law as to rank as “fundamental.” *Id.*, at 749.

This result is not surprising. *Ibid.* The insanity defense sits at the juncture of medical views of mental illness and moral and legal theories of criminal culpability—two areas of conflict and change. Small wonder that no particular test of insanity has developed into a constitutional baseline. And it is not for the courts to insist on any single criterion moving forward. Defining the precise relationship between criminal culpability and mental illness requires balancing complex considerations, among them the workings of the brain, the purposes of criminal law, and the ideas of free will and responsibility. This balance should remain open to revision as new medical knowledge emerges and societal norms evolve. Thus—as the Court recognized previously in *Leland*, *Powell*, and *Clark*—the defense is a project for state governance, not constitutional law. Pp. 282–297.

307 Kan. 374, 410 P.3d 105, affirmed.

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KAGAN, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. BREYER, J., filed a dissenting opinion, in which GINSBURG and SOTOMAYOR, JJ., joined, *post*, p. 297.

Sarah O'Rourke Schrup argued the cause for petitioner. With her on the briefs were *Meryl Carver-Allmond*, *Clayton J. Perkins*, *Jeffrey T. Green*, *Tobias S. Loss-Eaton*, and *Naomi Igra*.

Toby Crouse, Solicitor General of Kansas, argued the cause for respondent. With him on the brief were *Derek Schmidt*, Attorney General of Kansas, *Jeffrey A. Chanay*, Chief Deputy Attorney General, *Kristafer Ailslieger* and *Brant M. Laue*, Deputy Solicitors General, and *Dwight R. Carswell*, *Natalie Chalmers*, and *Rachel L. Pickering*, Assistant Solicitors General.

Elizabeth B. Prelogar argued the cause for the United States as *amicus curiae* urging affirmance. With her on the brief were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Eric J. Feigin*, and *Christopher J. Smith*.*

*Briefs of *amici curiae* urging reversal were filed for the American Bar Association by *Robert M. Carlson*, *Matthew S. Hellman*, *David A. Strauss*, and *Sarah M. Kinsky*; for the American Civil Liberties Union et al. by *Caitlin Halligan*, *David Cole*, and *Cassandra Stubbs*; for the American Psychiatric Association et al. by *Aaron M. Panner*, *David W. Ogden*, *Paul R. Q. Wolfson*, *Nathalie F. P. Gilfoyle*, *Deanne M. Ottaviano*, *Ira Abraham Burnim*, *Jennifer Mathis*, and *Mark J. Heyrman*; for the Idaho Association of Criminal Defense Lawyers et al. by *Jonah J. Horwitz*, *Craig Durham*, *Brian McComas*, and *Richard P. Mauro*; by Legal Historians et al. by *Allison R. McLaughlin* and *Theresa Wardon Benz*; for the National Association of Criminal Defense Lawyers by *Jonathan L. Marcus* and *Barbara E. Bergman*; for Philosophy Professors by *Eugene R. Fidell*; and for 290 Criminal Law and Mental Health Law Professors by *Richard J. Bonnie*, *pro se*.

Briefs of *amici curiae* urging affirmance were filed for the State of Utah et al. by *Sean D. Reyes*, Attorney General of Utah, *Tyler R. Green*, Solicitor General, *Thomas B. Brunker*, Deputy Solicitor General, and *Andrew F. Peterson*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G.*

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JUSTICE KAGAN delivered the opinion of the Court.

This case is about Kansas’s treatment of a criminal defendant’s insanity claim. In Kansas, a defendant can invoke mental illness to show that he lacked the requisite *mens rea* (intent) for a crime. He can also raise mental illness after conviction to justify either a reduced term of imprisonment or commitment to a mental health facility. But Kansas, unlike many States, will not wholly exonerate a defendant on the ground that his illness prevented him from recognizing his criminal act as morally wrong. The issue here is whether the Constitution’s Due Process Clause forces Kansas to do so—otherwise said, whether that Clause compels the acquittal of any defendant who, because of mental illness, could not tell right from wrong when committing his crime. We hold that the Clause imposes no such requirement.

I

A

In *Clark v. Arizona*, 548 U. S. 735, 749 (2006), this Court catalogued state insanity defenses, counting four “strains variously combined to yield a diversity of American standards” for when to absolve mentally ill defendants of criminal culpability. The first strain asks about a defendant’s “cognitive capacity”—whether a mental illness left him “unable to understand what he [was] doing” when he committed a crime. *Id.*, at 747, 749. The second examines his “moral capacity”—whether his illness rendered him “unable to understand that his action [was] wrong.” *Ibid.* Those two in-

Clarkson of Alaska, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Lawrence G. Wasden* of Idaho, *Curtis T. Hill, Jr.*, of Indiana, *Jeff Landry* of Louisiana, *Eric Schmitt* of Missouri, *Timothy C. Fox* of Montana, *Doug Peterson* of Nebraska, *Dave Yost* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, and *Ken Parton* of Texas; and for Lynn Denton et al. by *Allyson N. Ho*, *Bradley G. Hubbard*, *Steven J. Twist*, and *Paul G. Cassell*.

Andrew T. Tutt, *R. Stanton Jones*, and *Stephen K. Wirth* filed a brief of *amicus curiae* for John F. Stinneford.

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quiries, *Clark* explained, appeared as alternative pathways to acquittal in the landmark English ruling *M’Naghten’s Case*, 10 Cl. & Fin. 200, 8 Eng. Rep. 718 (H. L. 1843), as well as in many follow-on American decisions and statutes: If the defendant lacks either cognitive or moral capacity, he is not criminally responsible for his behavior. Yet a third “building block[]” of state insanity tests, gaining popularity from the mid-19th century on, focuses on “volitional incapacity”—whether a defendant’s mental illness made him subject to “irresistible[] impulse[s]” or otherwise unable to “control[] his actions.” *Clark*, 548 U. S., at 749, 750, n. 11; see, e. g., *Parsons v. State*, 81 Ala. 577, 597, 2 So. 854, 866–867 (1887). And bringing up the rear, in *Clark*’s narration, the “product-of-mental-illness test” broadly considers whether the defendant’s criminal act stemmed from a mental disease. 548 U. S., at 749–750.

As *Clark* explained, even that taxonomy fails to capture the field’s complexity. See *id.*, at 750, n. 11. Most notable here, *M’Naghten*’s “moral capacity” prong later produced a spinoff, adopted in many States, that does not refer to morality at all. Instead of examining whether a mentally ill defendant could grasp that his act was *immoral*, some jurisdictions took to asking whether the defendant could understand that his act was *illegal*. Compare, e. g., *People v. Schmidt*, 216 N. Y. 324, 333–334, 110 N. E. 945, 947 (1915) (Cardozo, J.) (asking about moral right and wrong), with, e. g., *State v. Hamann*, 285 N. W. 2d 180, 183 (Iowa 1979) (substituting ideas of legal right and wrong). That change in legal standard matters when a mentally ill defendant knew that his act violated the law yet believed it morally justified. See, e. g., *Schmidt*, 216 N. Y., at 339, 110 N. E., at 949; *People v. Ser-ravo*, 823 P. 2d 128, 135 (Colo. 1992).¹

¹ Another complicating factor in *Clark*’s classification scheme is that States “limit, in varying degrees, which sorts of mental illness” can support an insanity claim. *Clark v. Arizona*, 548 U. S. 735, 750, n. 11 (2006). So even two States using the same test for judging culpability may apply it to differently sized sets of offenders. See *infra*, at 295, n. 12.

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Kansas law provides that “[i]t shall be a defense to a prosecution under any statute that the defendant, as a result of mental disease or defect, lacked the culpable mental state required as an element of the crime charged.” Kan. Stat. Ann. §21–5209 (2018 Cum. Supp.).² Under that statute, a defendant may introduce any evidence of any mental illness to show that he did not have the intent needed to commit the charged crime. Suppose, for example, that the defendant shot someone dead and goes on trial for murder. He may then offer psychiatric testimony that he did not understand the function of a gun or the consequences of its use—more generally stated, “the nature and quality” of his actions. *M’Naghten*, 10 Cl. & Fin., at 210, 8 Eng. Rep., at 722. And a jury crediting that testimony must acquit him. As everyone here agrees, Kansas law thus uses *M’Naghten*’s “cognitive capacity” prong—the inquiry into whether a mentally ill defendant could comprehend what he was doing when he committed a crime. See Brief for Petitioner 41; Brief for Respondent 31; Brief for United States as *Amicus Curiae* 18. If the defendant had no such capacity, he could not form the requisite intent—and thus is not criminally responsible.

At the same time, the Kansas statute provides that “[m]ental disease or defect is not otherwise a defense.” §21–5209. In other words, Kansas does not recognize any additional way that mental illness can produce an acquittal.³ Most important for this case, a defendant’s moral incapacity cannot exonerate him, as it would if Kansas had adopted *both* original prongs of *M’Naghten*. Assume, for example, that a de-

² At the time of the crime in this case, a materially identical provision was codified at §22–3220 (2007).

³ Four other States similarly exonerate a mentally ill defendant only when he cannot understand the nature of his actions and so cannot form the requisite *mens rea*. See Alaska Stat. §§ 12.47.010(a), 12.47.020 (2018); Idaho Code Ann. §§ 18–207(1), (3) (2016); Mont. Code Ann. § 46–14–102 (2019); Utah Code § 76–2–305 (2017).

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fendant killed someone because of an “insane delusion that God ha[d] ordained the sacrifice.” *Schmidt*, 216 N. Y., at 339, 110 N. E., at 949. The defendant knew what he was doing (killing another person), but he could not tell moral right from wrong; indeed, he thought the murder morally justified. In many States, that fact would preclude a criminal conviction, although it would almost always lead to commitment in a mental health facility. In Kansas, by contrast, evidence of a mentally ill defendant’s moral incapacity—or indeed, of anything except his cognitive inability to form the needed *mens rea*—can play no role in determining guilt.

That partly closed-door policy changes once a verdict is in. At the sentencing phase, a Kansas defendant has wide latitude to raise his mental illness as a reason to judge him not fully culpable and so to lessen his punishment. See §§ 21–6815(c)(1)(C), 21–6625(a). He may present evidence (of the kind *M’Naghten* deemed relevant) that his disease made him unable to understand his act’s moral wrongness—as in the example just given of religious delusion. See § 21–6625(a). Or he may try to show (in line with *M’Naghten*’s spinoff) that the illness prevented him from “appreciat[ing] the [conduct’s] criminality.” § 21–6625(a)(6). Or again, he may offer testimony (here invoking volitional incapacity) that he simply could not “conform [his] conduct” to legal restraints. *Ibid.* Kansas sentencing law thus provides for an individualized determination of how mental illness, in any or all of its aspects, affects culpability. And the same kind of evidence can persuade a court to place a defendant who needs psychiatric care in a mental health facility rather than a prison. See § 22–3430. In that way, a defendant in Kansas lacking, say, moral capacity may wind up in the same kind of institution as a like defendant in a State that would bar his conviction.

B

This case arises from a terrible crime. In early 2009, Karen Kahler filed for divorce from James Kahler and moved

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out of their home with their two teenage daughters and 9-year-old son. Over the following months, James Kahler became more and more distraught. On Thanksgiving weekend, he drove to the home of Karen's grandmother, where he knew his family was staying. Kahler entered through the back door and saw Karen and his son. He shot Karen twice, while allowing his son to flee the house. He then moved through the residence, shooting Karen's grandmother and each of his daughters in turn. All four of his victims died. Kahler surrendered to the police the next day and was charged with capital murder.

Before trial, Kahler filed a motion arguing that Kansas's treatment of insanity claims violates the Fourteenth Amendment's Due Process Clause. Kansas, he asserted, had "unconstitutionally abolished the insanity defense" by allowing the conviction of a mentally ill person "who cannot tell the difference between right and wrong." App. 11–12. The trial court denied the motion, leaving Kahler to attempt to show through psychiatric and other testimony that severe depression had prevented him from forming the intent to kill. See *id.*, at 16; § 21–5209. The jury convicted Kahler of capital murder. At the penalty phase, the court permitted Kahler to offer additional evidence of his mental illness and to argue in whatever way he liked that it should mitigate his sentence. The jury still decided to impose the death penalty.

Kahler appealed, again challenging the constitutionality of Kansas's approach to insanity claims. The Kansas Supreme Court rejected his argument, relying on an earlier precedential decision. See 307 Kan. 374, 400–401, 410 P. 3d 105, 124–125 (2018) (discussing *State v. Bethel*, 275 Kan. 456, 66 P. 3d 840 (2003)). There, the court denied that any single version of the insanity defense is so "ingrained in our legal system" as to count as "fundamental." *Id.*, at 473, 66 P. 3d, at 851. The court thus found that "[d]ue process does not mandate that a State adopt a particular insanity test." *Ibid.*

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Kahler then asked this Court to decide whether the Due Process Clause requires States to provide an insanity defense that acquits a defendant who could not “distinguish right from wrong” when committing his crime—or, otherwise put, whether that Clause requires States to adopt the moral-incapacity test from *M’Naghten*. Pet. for Cert. 18. We granted certiorari, 586 U. S. 1221 (2019), and now hold it does not.⁴

II

A

A challenge like Kahler’s must surmount a high bar. Under well-settled precedent, a state rule about criminal liability—laying out either the elements of or the defenses to a crime—violates due process only if it “offends some principle of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.” *Leland v. Oregon*, 343 U. S. 790, 798 (1952) (internal quotation marks omitted). Our primary guide in applying that standard is “historical practice.” *Montana v. Egelhoff*, 518 U. S. 37, 43 (1996) (plurality opinion). And in assessing that practice, we look primarily to eminent common-law authorities (Blackstone, Coke, Hale, and the like), as well as to early English and American judicial decisions. See, e. g., *id.*, at 44–45; *Patterson v. New York*, 432 U. S. 197, 202 (1977). The question is whether a rule of criminal responsibility is so old and venerable—so entrenched in the central values of our legal system—as to prevent a State from ever choosing another. An affirmative answer, though not unheard of, is rare. See, e. g., *Clark*, 548 U. S., at 752 (“[T]he conceptualization of criminal offenses” is mostly left to the States).

⁴ Kahler also asked us to decide whether the Eighth Amendment requires that States make available the moral-incapacity defense. See Pet. for Cert. 18. But that claim is not properly before us. Kahler did not raise the argument below, and the Kansas courts therefore did not address it.

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In *Powell v. Texas*, 392 U.S. 514 (1968), this Court explained why. There, Texas declined to recognize “chronic alcoholism” as a defense to the crime of public drunkenness. *Id.*, at 517 (plurality opinion). The Court upheld that decision, emphasizing the paramount role of the States in setting “standards of criminal responsibility.” *Id.*, at 533. In refusing to impose a “constitutional doctrine” defining those standards, the Court invoked the many “interlocking and overlapping concepts” that the law uses to assess when a person should be held criminally accountable for “his antisocial deeds.” *Id.*, at 535–536. “The doctrines of *actus reus*, *mens rea*, insanity, mistake, justification, and duress”—the Court counted them off—reflect both the “evolving aims of the criminal law” and the “changing religious, moral, philosophical, and medical views of the nature of man.” *Id.*, at 536. Or said a bit differently, crafting those doctrines involves balancing and rebalancing over time complex and oft-competing ideas about “social policy” and “moral culpability”—about the criminal law’s “practical effectiveness” and its “ethical foundations.” *Id.*, at 538, 545, 548 (Black, J., concurring). That “constantly shifting adjustment” could not proceed in the face of rigid “[c]onstitution[al] formulas.” *Id.*, at 536–537 (plurality opinion). Within broad limits, *Powell* thus concluded, “doctrine[s] of criminal responsibility” must remain “the province of the States.” *Id.*, at 534, 536.

Nowhere has the Court hewed more closely to that view than in addressing the contours of the insanity defense. Here, uncertainties about the human mind loom large. See, e.g., *Ake v. Oklahoma*, 470 U.S. 68, 81 (1985) (“[P]sychiatrists disagree widely and frequently on what constitutes mental illness, on [proper] diagnos[es, and] on cure and treatment”). Even as some puzzles get resolved, others emerge. And those perennial gaps in knowledge intersect with differing opinions about how far, and in what ways, mental illness should excuse criminal conduct. See *Clark*, 548 U.S., at

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749–752 (canvassing how those competing views produced a wealth of insanity tests); *supra*, at 274–275. “This whole problem,” we have noted, “has evoked wide disagreement.” *Leland*, 343 U. S., at 801. On such unsettled ground, we have hesitated to reduce “experimentation, and freeze [the] dialogue between law and psychiatry into a rigid constitutional mold.” *Powell*, 392 U. S., at 536–537. Indeed, while addressing the demand for an alcoholism defense in *Powell*, the Court pronounced—as something close to self-evident—that “[n]othing could be less fruitful” than to define a specific “insanity test in constitutional terms.” *Id.*, at 536.

And twice before we have declined to do so. In *Leland v. Oregon*, a criminal defendant challenged as a violation of due process the State’s use of the moral-incapacity test of insanity—the very test Kahler now asks us to require. See 343 U. S., at 800–801. According to the defendant, Oregon instead had to adopt the volitional-incapacity (or irresistible-impulse) test to comply with the Constitution. See *ibid.*; *supra*, at 275. We rejected that argument. “[P]sychiatry,” we first noted, “has made tremendous strides since [the moral-incapacity] test was laid down in *M’Naghten’s Case*,” implying that the test seemed a tad outdated. 343 U. S., at 800–801. But still, we reasoned, “the progress of science has not reached a point where its learning” would demand “eliminat[ing] the right and wrong test from [the] criminal law.” *Id.*, at 801. And anyway, we continued, the “choice of a test of legal sanity involves not only scientific knowledge but questions of basic policy” about when mental illness should absolve someone of “criminal responsibility.” *Ibid.* The matter was thus best left to each State to decide on its own. The dissent agreed (while parting from the majority on another ground): “[I]t would be indefensible to impose upon the States[] one test rather than another for determining criminal culpability” for the mentally ill, “and thereby to displace a State’s own choice.” *Id.*, at 803 (opinion of Frankfurter, J.).

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A half-century later, we reasoned similarly in *Clark*. There, the defendant objected to Arizona's decision to discard the cognitive-incapacity prong of *M'Naghten* and leave in place only the moral-incapacity one—essentially the flipside of what Kansas has done. Again, we saw no due process problem. Many States, we acknowledged, allowed a defendant to show insanity through either prong of *M'Naghten*. See 548 U. S., at 750. But we denied that this approach “represents the minimum that a government must provide.” *Id.*, at 748. In so doing, we invoked the States’ traditional “capacity to define crimes and defenses,” and noted how views of mental illness had been particularly “subject to flux and disagreement.” *Id.*, at 749, 752. And then we surveyed the disparate ways that state laws had historically excused criminal conduct because of mental disease—those “strains variously combined to yield a diversity of American standards.” See *id.*, at 749–752; *supra*, at 274–275. The takeaway was “clear”: A State’s “insanity rule[] is substantially open to state choice.” *Clark*, 548 U. S., at 752. Reiterating *Powell*’s statement, *Clark* held that “no particular” insanity test serves as “a baseline for due process.” 548 U. S., at 752. Or said just a bit differently, that “due process imposes no single canonical formulation of legal insanity.” *Id.*, at 753.

B

Yet Kahler maintains that Kansas’s treatment of insanity fails to satisfy due process. He sometimes makes his argument in the broadest of strokes, as he did before trial. See *supra*, at 278. Kansas, he then contends, has altogether “abolished the insanity defense,” in disregard of hundreds of years of historical practice. Brief for Petitioner 39. His central claim, though, is more confined. It is that Kansas has impermissibly jettisoned the moral-incapacity test for insanity. See *id.*, at 12, 23. As earlier noted, both *Clark* and *Leland* described that test as coming from *M'Naghten*. See 548 U. S., at 749; 343 U. S., at 801; *supra*, at 274–275, 281. But according

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to Kahler (and the dissent), the moral-incapacity inquiry emerged centuries before that decision, thus forming part of the English common-law heritage this country inherited. See Brief for Petitioner 21, 42; *post*, at 300–310 (opinion of BREYER, J.). And the test, he claims, served for all that time—and continuing into the present—as the touchstone of legal insanity: If a defendant could not understand that his act was morally wrong, then he could not be found criminally liable. See Brief for Petitioner 20–23; see also *post*, at 310–312. So Kahler concludes that the moral-incapacity standard is a “principle of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.” *Leland*, 343 U. S., at 798; see *supra*, at 279. In essence—and contra *Clark*—that test *is* the “single canonical formulation of legal insanity” and thus the irreducible “baseline for due process.” 548 U. S., at 752–753; see *supra*, at 282.⁵

One point, first, of agreement: Kahler is right that for hundreds of years jurists and judges have recognized insanity (however defined) as relieving responsibility for a crime. “In criminal cases therefore,” Sir William Blackstone wrote, “lunatics are not chargeable for their own acts, if committed when under these incapacities.” 4 Commentaries on the Laws of England 24 (1769). Sir Edward Coke even earlier

⁵ Although the dissent at times claims to the contrary, its argument is the same. Given the clear direction of our precedent, the dissent must purport to grant the States “leeway” in defining legal insanity. *Post*, at 297. But the entirety of the dissent’s historical analysis focuses on the moral-incapacity standard—attempting to show, just as Kahler does, that it both preceded and succeeded *M’Naghten*. See *post*, at 300–313. And in line with that narration, the dissent insists on moral understanding as the indispensable criterion of legal sanity—the *sine qua non* of criminal responsibility. See, e. g., *post*, at 297, 299–300, 304–305, 313–317. Indeed, the dissent offers only one way the States have actual “leeway” to change their insanity rules: They can “expand upon *M’Naghten*’s principles” by finding that even some who *have* moral capacity are insane. *Post*, at 318. But that is just to say that moral capacity is the constitutional floor—again, exactly what Kahler argues.

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explained that in criminal cases, “the act and wrong of a mad man shall not be imputed to him.” 2 Institutes of the Laws of England § 405, p. 247b (1628) (Coke). And so too Henry de Bracton thought that a “madman” could no sooner be found criminally liable than a child. 2 Bracton on Laws and Customs of England 384 (S. Thorne transl. 1968) (Bracton). That principle of non-culpability appeared in case after case involving allegedly insane defendants, on both sides of the Atlantic. “The defen[s]e of insanity[,] is a defen[s]e for all crimes[,] from the highest to the lowest,” said the Court in Old Bailey. *Trial of Samuel Burt* (July 19, 1786), in 6 Proceedings in the Old Bailey 874 (E. Hodgson ed. 1786) (Old Bailey Proceedings). Repeated Justice Story, when riding circuit: “In general, insanity is an excuse for the commission of every crime, because the party has not the possession of that reason, which includes responsibility.” *United States v. Drew*, 25 F. Cas. 913 (No. 14,993) (CC Mass. 1828); see also, e. g., *State v. Marler*, 2 Ala. 43, 49 (1841) (“If the prisoner was insane, he was not an accountable being”); *Cornwell v. State*, 8 Tenn. 147, 156 (1827) (“[P]erfect madness” will “free a man from punishment for crime”). We have not found a single case to the contrary.

But neither do we think Kansas departs from that broad principle. First, Kansas has an insanity defense negating criminal liability—even though not the type Kahler demands. As noted earlier, Kansas law provides that it is “a defense to a prosecution” that “the defendant, as a result of mental disease or defect, lacked the culpable mental state required” for a crime. § 21–5209; see *supra*, at 276. That provision enables a defendant to present psychiatric and other evidence of mental illness to defend himself against a criminal charge. More specifically, the defendant can use that evidence to show that his illness left him without the cognitive capacity to form the requisite intent. See *supra*, at 276. Recall that such a defense was exactly what the defendant in *Clark* wanted, in preference to Arizona’s moral-incapacity defense: His (unsuccessful) appeal rested on the trial court’s

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exclusion of psychiatric testimony to show that he lacked the relevant *mens rea*. See 548 U. S., at 745–747; *supra*, at 282. Here, Kahler could do what Clark could not—try to show through such testimony that he had no intent to kill. Of course, Kahler would have preferred Arizona’s kind of insanity defense (just as Clark would have liked Kansas’s). But that does not mean that Kansas (any more than Arizona) failed to offer any insanity defense at all.

Second, and significantly, Kansas permits a defendant to offer whatever mental health evidence he deems relevant at sentencing. See §§ 21–6815(c)(1)(C), 21–6625(a); *supra*, at 277. A mentally ill defendant may argue there that he is not blameworthy because he could not tell the difference between right and wrong. Or, because he did not know his conduct broke the law. Or, because he could not control his behavior. Or, because of anything else. In other words, any manifestation of mental illness that Kansas’s guilt-phase insanity defense disregards—including the moral incapacity Kahler highlights—can come in later to mitigate culpability and lessen punishment. And that same kind of evidence can persuade a judge to replace any prison term with commitment to a mental health facility. See § 22–3430; *supra*, at 277. So as noted above, a defendant arguing moral incapacity may well receive the same treatment in Kansas as in States that would acquit—and, almost certainly, commit—him for that reason. See *supra*, at 277. In sum, Kansas does not bar, but only channels to sentencing, the mental health evidence that falls outside its intent-based insanity defense. When combined with Kansas’s allowance of mental health evidence to show a defendant’s inability to form criminal intent, that sentencing regime defeats Kahler’s charge that the State has “abolish[ed] the insanity defense entirely.”⁶ Brief for Petitioner 39.

⁶ We here conclude only that Kansas’s scheme does not abolish the insanity defense. We say nothing, one way or the other, about whether any other scheme might do so.

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So Kahler can prevail here only if he can show (again, contra *Clark*) that due process demands a specific test of legal insanity—namely, whether mental illness prevented a defendant from understanding his act as immoral. Kansas, as we have explained, does not use that type of insanity rule. See *supra*, at 276–277. If a mentally ill defendant had enough cognitive function to form the intent to kill, Kansas law directs a conviction even if he believed the murder morally justified. In Kansas’s judgment, that delusion does not make an intentional killer entirely blameless. See Brief for Respondent 40. Rather than eliminate, it only lessens the defendant’s moral culpability. See *ibid.* And sentencing is the appropriate place to consider mitigation: The decision-maker there can make a nuanced evaluation of blame, rather than choose, as a trial jury must, between all and nothing. See *ibid.* In any event, so Kansas thinks.⁷ Those views are contested and contestable; other States—many others—have made a different choice. But Kahler must show more than that. He must show that adopting the moral-incapacity version of the insanity rule is not a choice at all—because,

⁷ The dissent is therefore wrong to suggest that Kansas’s law has become untethered from moral judgments about culpability. See *post*, at 297, 299, 311–318. No doubt, Kansas’s moral judgments differ from the dissent’s. Again, Kansas believes that an intentional killer is not wholly blameless, even if, for example, he thought his actions commanded by God. The dissent, in contrast, considers Kansas’s view benighted (as maybe some in the majority do too). But that is not a dispute, as the dissent suggests, about *whether* morality should play a role in assigning legal responsibility. It is instead a disagreement about what morality entails—that is, about *when* a defendant is morally culpable for an act like murder. See *State v. Bethel*, 275 Kan. 456, 465–471, 66 P. 3d 840, 847–850 (2003) (accepting Kansas’s view that “moral blameworthiness” is linked to a defendant’s intent to kill, rather than to his ability to tell right from wrong). And we have made clear, from *Leland* to *Powell* to *Clark*, that courts do not get to make such judgments. See *supra*, at 280–282. Instead, the States have broad discretion to decide who counts as blameworthy, and to weigh that along with other factors in defining the elements of, and defenses to, crimes.

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again, that version is “so rooted in the traditions and conscience of our people as to be ranked as fundamental.” *Le-land*, 343 U. S., at 798. And he cannot. The historical record is, on any fair reading, complex—even messy. As we will detail, it reveals early versions of not only Kahler’s proposed standard but also Kansas’s alternative.

Early commentators on the common law proposed various formulations of the insanity defense, with some favoring a morality inquiry and others a *mens rea* approach. Kahler cites William Lambard’s 16th-century treatise defining a “mad man” as one who “hath no knowledge of good nor evil” (the right and wrong of the day). *Eirenarcha*, ch. 21, p. 218 (1581). He likewise points to William Hawkins’s statement, over a hundred years later, that a “lunatick[]” is not punishable because “under a natural disability of distinguishing between good and evil.” 1 *Pleas of the Crown* §1, p. 2 (1716) (capitalization omitted). Both true enough. But other early versions of the insanity test—and from a more famous trio of jurists—demanded the kind of cognitive impairment that prevented a defendant from understanding the nature of his acts, and thus intending his crime. Henry de Bracton’s 13th-century treatise gave rise to what became known as the “wild beast” test. See J. Biggs, *The Guilty Mind* 82 (1955). Used for hundreds of years, it likened a “madman” to an “animal[] which lack[s] reason” and so could not have “the intention to injure.” Bracton 384; see *ibid.* (A “madman” cannot commit a crime because “[i]t is will and purpose which mark” misdeeds). Sir Edward Coke similarly linked the definition of insanity to a defendant’s inability to form criminal intent. He described a legally insane person in 1628 as so utterly “without his mind or discretion” that he could not have the needed *mens rea*. 2 *Coke* §405, at 247b. So too Lord Matthew Hale a century later. He explained that insanity involves “a total alienation of the mind or perfect madness,” such that a defendant could not act “*animo felonico*,” meaning with felonious intent. 1 *Pleas*

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of the Crown, ch. 4, pp. 30, 37 (1736); see *id.*, at 37 (“[F]or being under a full alienation of mind, he acts not *per electionem* or *intentionem* [by choice or intent]”).⁸

Quite a few of the old common-law cases similarly stressed the issue of cognitive capacity. To be sure, even these cases included some references to the ability to tell right from wrong (and the dissent eagerly cherry-picks every one of them). But the decisions’ overall focus was less on whether a defendant thought his act moral than on whether he had the ability to do much thinking at all. In the canonical case of *Rex v. Arnold*, 16 How. St. Tr. 695 (1724), for example, the jury charge descended straight from Bracton:

“[I]t is not every kind of frantic humour or something unaccountable in a man’s actions, that points him out to

⁸The dissent tries to recruit these three jurists to the side of the moral-incapacity test, see *post*, at 300–302, but cannot succeed. Even the carefully curated passages the dissent quotes focus on cognitive capability rather than moral judgment. See, e.g., *post*, at 301–302 (asking whether a defendant had “sense and reason” or “understanding and liberty of will”). In so doing, they refer to the defendant’s ability to form the requisite *mens rea*, or felonious intent. See *Clark*, 548 U.S., at 747; *supra*, at 274–275.

The dissent still insists all is not lost because (it says) *mens rea* itself hinged at common law on a defendant’s “moral understanding.” *Post*, at 304–305. Here, the dissent infers from the use of “good-from-evil” language in various common-law treatises and cases that moral blameworthiness must have defined the *mens rea* inquiry. See *ibid.* But to begin with—and to repeat the point made in the text—the most influential treatises used little of that language, emphasizing instead the need for a defendant to intend his act in the ordinary sense of the term. And as we will explain, the joint presence of references to *mens rea* and moral understanding in other common-law sources involving insanity does not show that most jurists saw the two concepts as one and the same. See *infra* this page and 289–291. Some may well have viewed *mens rea* through a moral prism; but others emphasized cognitive understanding in using that term; and still others combined the moral and cognitive in diverse ways. Which is to say that the record is far more complicated than the dissent lets on, with jurists invoking, both within particular sources and across all of them, a variety of ways to resolve insanity claims. And under our long-established precedent, that motley sort of history cannot provide the basis for a successful due process claim.